

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202205146	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/02/2022 8:17 PM	Location of Incident: Fulton Street and Logan Street	18 Mo. SOL 2/2/2024	Precinct: 75		
Date/Time CV Reported Thu, 08/04/2022 6:56 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 08/04/2022 6:56 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DTS Marc Whirl	03696	937726	075 PCT
2. DTS James Argila	03497	946752	075 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . DTS Marc Whirl	Abuse: Detective Marc Whirl stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . DTS James Argila	Abuse: Detective James Argila stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . DTS Marc Whirl	Off. Language: Detective Marc Whirl made offensive remarks to § 87(2)(b) based upon a perceived mental disability.	C . Substantiated
D . DTS Marc Whirl	Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)	D . Substantiated
E . DTS Marc Whirl	Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)	E . Substantiated
F . DTS Marc Whirl	Discourtesy: Detective Marc Whirl acted discourteously toward § 87(2)(b)	F . Unfounded
G . DTS Marc Whirl	Off. Language: Detective Marc Whirl made offensive remarks to § 87(2)(b)	G . Unsubstantiated
H . DTS Marc Whirl	Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)	H . Unsubstantiated
I . DTS Marc Whirl	Off. Language: Detective Marc Whirl made offensive remarks to § 87(2)(b)	I . Unsubstantiated
J . DTS Marc Whirl	Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)	J . Unsubstantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 4, 2022, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On August 2, 2022, at approximately 8:17 p.m., Detectives Marc Whirl and James Argila, both from the 75th Precinct, stopped § 87(2)(b) vehicle, in which she, § 87(2)(b) and § 87(2)(b) were occupants, near Fulton Street and Logan Street in Brooklyn (**Allegations A and B: Abuse of Authority-Vehicle Stop, exonerated**). Det. Whirl told § 87(2)(b) that he would inform her of the reason for the stop upon obtaining her documentation. When § 87(2)(b) continued asking why she was stopped, Det. Whirl accused her of not comprehending the English language (**Allegation C: Offensive Language-Other, substantiated**) (**Allegation D: Discourtesy-Word, substantiated**). Det. Whirl told § 87(2)(b) that she went to a “very stupid school” and that asking her family members about conducting vehicle stops would be “dumb” (**Allegation E: Discourtesy-Word, substantiated**). At the end of the encounter, Det. Whirl allegedly threw his business card inside of § 87(2)(b) vehicle (**Allegation F: Discourtesy-Action, unfounded**).

When Det. Whirl and Det. Argila returned to their vehicles and drove off, Det. Whirl allegedly conducted a U-turn, approached § 87(2)(b) vehicle again, and allegedly called either § 87(2)(b) or § 87(2)(b) a “dumb dumb” (**Allegation G: Offensive Language- Other, unsubstantiated**) (**Allegation H: Discourtesy-Word, unsubstantiated**) (**Allegation I: Offensive Language-Other, unsubstantiated**) (**Allegation J: Discourtesy-Word, unsubstantiated**).

§ 87(2)(g), § 87(4-b)

Neither § 87(2)(b) § 87(2)(b) § 87(2)(b) nor § 87(2)(b) were arrested or issued summonses as a result of this incident.

The investigation obtained cellphone video footage taken by § 87(2)(b) during this incident (**BR01**), as well as BWC from both Det. Whirl (**BR02**), and Det. Argila’s (**BR03**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Marc Whirl stopped the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Detective James Argila stopped the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b) vehicle has tinted windows.

Det. Whirl’s BWC (**BR02**) captures the tinted windows on § 87(2)(b) vehicle from the 01:03 mark. The rear passenger window on the driver’s side is heavily tinted, as well as the rear windshield.

§ 87(2)(b) (**BR04**) stated that she was double parked by a pizza shop, waiting for her friend, § 87(2)(b) to return with their food. § 87(2)(b) was in the front passenger seat and § 87(2)(b) sat behind § 87(2)(b) § 87(2)(b) vehicle was a black BMW, with tints on all of the windows, 5% transparency on all windows, except the front and back windshields, which had 25% transparency. All the windows were completely rolled down. As they waited, § 87(2)(b) observed an unmarked NYPD vehicle drive toward her, in the opposite direction. The officers made eye contact with § 87(2)(b) Soon after § 87(2)(b) returned with the food and § 87(2)(b) began driving, § 87(2)(b) observed the unmarked vehicle conduct a U-Turn and approach her vehicle with their lights and sirens on. § 87(2)(b) pulled over on Fulton Street and Logan Street and the unmarked vehicle stopped directly behind her. Toward the end of the stop, Det. Whirl confirmed that he stopped her for having tinted windows on the vehicle.

§ 87(2)(b) statement (**BR05**) was consistent with § 87(2)(b) regarding the events leading up to the stop.

§ 87(2)(b) statement (BR06) was also generally consistent with § 87(2)(b) statement regarding the events leading up to the stop, except she mentioned the vehicle windows being halfway rolled down when the unmarked vehicle drove by.

§ 87(2)(b) statement (BR07) was also generally consistent with § 87(2)(b) statement, except he was looking at his phone during the moments leading up to the stop and was not able to provide too many details about the vehicle's conditions. However, he stated that he did not believe § 87(2)(b) was committing any infractions prior to being stopped.

Det. Whirl (BR08) and Det. Argila (BR09) both stated they observed tinted windows on § 87(2)(b) vehicle, which was the sole reason for the stop. They were not certain which windows were tinted or whether the windows were rolled up or down. The officers did not recall whose decision it was to stop the vehicle.

New York Consolidated Law Service, Vehicle and Traffic Laws § 375, Section 12(b) notes that no person shall operate a motor vehicle upon any public highway, road, or street where the front windshield, side windows, and/or the rear window is treated or covered with any material that has a light transmittance of less than seventy percent (BR10).

As noted, it is undisputed that § 87(2)(b) had tints on her vehicle's windows when the officers stopped her. § 87(2)(g) it is recommended that **Allegations A and B** be exonerated.

Allegation (C) Offensive Language: Detective Marc Whirl made offensive remarks to § 87(2)(b) based upon a perceived mental disability.

Allegation (D) Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)

Allegation (E) Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)

Allegation (F) Discourtesy: Detective Marc Whirl acted discourteously toward § 87(2)(b)

Det. Whirl's BWC (BR02) most clearly captures the dialogue between himself and § 87(2)(b). At the 01:50 mark, § 87(2)(b) tells Det. Whirl that she wants to know why she was stopped, and Det. Whirl tells her that she does not comprehend the English language because he already told her that he would provide the reason for the stop after documents were provided to him. At the 03:00 mark, § 87(2)(b) mentions that she was told in school that officers have to tell people why they were stopped. Det. Whirl states she must have gone to a "very stupid school." At the 03:18 mark, Det. Whirl tells § 87(2)(b) that it would be "dumb" to ask her family members about the protocol of a stop. At the 04:15 mark, Det. Whirl places his business card on § 87(2)(b) dashboard. He is not captured throwing or flicking it into the vehicle.

§ 87(2)(b) (BR04) stated that when Det. Whirl initially refused to tell § 87(2)(b) the reason for stopping her vehicle, she told him that failure to do so was illegal. Det. Whirl stated it was not illegal. § 87(2)(b) told him that that is what she was taught. Det. Whirl told § 87(2)(b) that she must have gone to a "stupid school" and not graduated. § 87(2)(b) told him that she would ask her family members about the legality and Det. Whirl told her that would be stupid, as well. § 87(2)(b) did not mention Det. Whirl commenting on her comprehension of the English language.

When Det. Whirl returned § 87(2)(b) documents, he threw his business card onto her dashboard. She described it as a flicking motion. Det. Whirl did not try to give § 87(2)(b) the business card prior to throwing it inside.

§ 87(2)(b) statement (BR05) was generally consistent with § 87(2)(b) except § 87(2)(b) added that Det. Whirl also called § 87(2)(b) "dumb", directly, and called the person who taught her about officer duties "stupid."

§ 87(2)(b) statement (BR06) was generally consistent with § 87(2)(b) except she did not see how Det. Whirl handed § 87(2)(b) his business card.

§ 87(2)(b) statement (BR07) was generally consistent with § 87(2)(b) regarding how Det. Whirl provided his business card. Regarding the conversation prior, § 87(2)(b) stated that § 87(2)(b) questioned Det. Whirl's vehicle stop procedure, given that she had family

members in the NYPD. Det. Whirl told § 87(2)(b) something about having a “dumb cop” in her family. Det. Whirl did not call § 87(2)(b) “dumb” directly.

Det. Whirl (BR08) did not recall making any statements about § 87(2)(b) going to a “stupid school,” even after viewing his BWC. He stated that if § 87(2)(b) stated that a school taught her what she knew about vehicle stops then it was a stupid school. When presented with a second clip of his BWC, from the 03:08 mark to the 03:24 mark, Det. Whirl remembered stating that § 87(2)(b) asking a family member about the stop was “dumb.” He made that statement because her family members advice would have nothing to do with how he conducted his car stop. Det. Whirl told § 87(2)(b) that she had a lack of understanding of the English language, given that he repeatedly told her multiple times that he did not have to tell her why she was stopped, yet she continued stating that he was required to.

Patrol Guide procedure 200-02 notes that the NYPD’s mission is to, in partnership with the community, value human life, respect the dignity of each individual, and render our services with courtesy and civility, while also maintaining a higher standard of integrity than is generally expected of others (BR11).

Administrative Guide 304-06 notes that officers are prohibited from using discourteous or disrespectful remarks regarding another person’s age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability (BR23).

DAO-DCT 2015-15012 found that officers are prohibited from using discourteous language, except when in a highly dangerous or stressful situation. Officers shall not use discourteous language that serves no legitimate purpose other than to belittle (BR24).

§ 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) recommends that **Allegations C and D** be **substantiated**.

The discussed BWC shows that Det. Whirl made comments regarding § 87(2)(b) going to a “stupid school” and her actions being “dumb” § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation E** be **substantiated**.

§ 87(2)(g)

§ 87(2)(g) BWC clearly captures Det. Whirl placing his business card on § 87(2)(b) dashboard, absent any flicking motion. As such, it is recommended that **Allegation F** be **unfounded**.

Allegation (G) Offensive Language: Detective Marc Whirl made offensive remarks to § 87(2)(b)

§ 87(2)(b)
Allegation (H) Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)

Allegation (I) Offensive Language: Detective Marc Whirl made offensive remarks to § 87(2)(b)

§ 87(2)(b)
Allegation (J) Discourtesy: Detective Marc Whirl spoke discourteously to § 87(2)(b)

Neither Det. Whirl (BR08) nor Det. Argila’s BWC (BR09) capture the events after the vehicle stop ended, including Det. Whirl driving toward § 87(2)(b) vehicle and calling anyone a “dumb dumb.” As such, there is no video footage capturing this incident.

§ 87(2)(b) (BR04) stated that when Det. Whirl and Det. Argila re-entered their vehicle, Det. Whirl conducted another U-Turn, pulled up next to § 87(2)(b) vehicle, and said to her, “You dumb dumb.”

§ 87(2)(b) statement (BR05) regarding the events after the stop were consistent with § 87(2)(b) statement.

§ 87(2)(b)

(BR07) consistently stated that Det. Whirl approached § 87(2)(b)

vehicle after the vehicle stop. However, he stated that Det. Whirl looked at him when he said, “dumb dumb.”

§ 87(2)(b) (BR06) stated that when the officers pulled off, the passengers did not have any further interactions with the officers.

Det. Whirl (BR08) denied approaching § 87(2)(b) vehicle again and making any additional statements to any of the passengers.

Det. Argila (BR09) did not recall Det. Whirl conducting another U-Turn to approach the vehicle again. Det. Argila did not recall hearing Det. Whirl call anyone a dumb-dumb after returning to his vehicle.

§ 87(2)(g)

it is recommended that **Allegations G, H, I and J** be **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) have been parties (BR14, BR15, BR16, BR17).
- Det. Whirl has been a member of service for 17 years. He has been named the subject in 20 other CCRB complaints and 46 allegations, 11 of which have been substantiated:
 - § 87(2)(g), § 87(4-b)
 -
 -
 -
 -
 -
 -
 -
 -
 -
 -
- 202007357 involves substantiated allegations of failure to provide RTKA card, a frisk, and a stop, each which the board recommended command discipline B. This

CCRB Case # 202205146

case § 87(2)(g), § 87(4-b)

- § 87(2)(g)
- Det. Argila has been a member of service for 14 years. He has been named the subject in 11 other CCRB complaints and 28 allegations, nine of which have been substantiated:
 - 201808991 involves substantiated allegations of a frisk and a threat of summons, for which he received formalized training.
 - 202007357 involves substantiated allegations of failure to provide a RTKA card and refusal to provide shield number. The Board recommended command discipline B.
 - 202007357 involves a substantiated allegation of a stop. The board recommended command discipline B. § 87(2)(g), § 87(4-b)
 - 202103361 involves substantiated allegations of search of person and an untruthful statement. The board recommended charges.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On November 16, 2022, the investigation submitted a notice of claim inquiry through the FOIL portal. This report will be updated upon receipt of a response (**BR18**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: _____ 10 _____

Investigator:	<u>Jessica Russo</u>	Supervising Investigator Jessica Russo	12/28/2022
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	IM Maura R. Roche	12/28/2022
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date